

26STLC00586 26STLC00586

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 26STLC00586 Hearing Date: August 13, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Maria Gutierrez's Petitions to Approve Compromise of Disputed Claim on behalf of Minor Merida Bucio and Sahara Bucio are continued to 09/17/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 09/03/2026, Petitioner is to file the Declaration of Maria Gutierrez in Support of Sahara Bucios.

Analysis:

Minor Plaintiffs Merida Bucio and Sahara Bucio ("Claimants"), by and through Plaintiff Maria Gutierrez ("Petitioner"), filed the instant action for motor vehicle negligence against Defendants Susan Zurita and Norma Carrillo ("Defendants") on January 28, 2026.

On March 23, 2026, Petitioner filed Petitions for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability. The Petitions were set for hearing on June 11, 2026, then continued at Petitioner's request. (Minute Order, 03/30/26.) At the hearing on June 23, 2026, the Court continued the Petitions again to allow for supplemental papers to be filed. (Minute Order, 06/23/26.)

On June 30, 2026, Petitioner filed declarations regarding Claimants' medical treatment and recovery, as well as Applications for Appointment of Guardian Ad Litem. The Applications for Appointment of Guardian Ad Litem were rejected by the Court on July 16, 2026, but Petitioner filed new ones on July 30, 2026. Petitioner also filed orders with respect to the Petitions for Approval of Compromise and a Notice of Continued Hearing on July 1 and 2, 2026, respectively.

Discussion

Court approval is required for all settlements of a minor's claim. (Prob. Code §§ 3500, 3600, et seq.; Code Civ. Proc., § 372.) "[W]ithout trial court approval of the proposed compromise of the ward's claim, the settlement cannot be valid. [Citation.] [¶] Nor is the settlement binding [on the minor] until it is endorsed by the trial court." (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like Claimant, "shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case." (Code Civ. Proc., § 372, subd. (a)(1).) Alternatively, the petitioner may file a declaration demonstrating that they have a right to compromise the minor's claim under Cal. Probate Code section 3500.

Petitioner's supplemental declarations strive to explain Claimants' current condition and provide context for the medical reports attached to their Petitions. The doctor's report for Claimant Merida is dated December 7, 2024 and refers to ongoing

injuries that may require follow-up treatment. (Pet., Attachment 8, pp. 6-7.) However, Petitioner declares that Claimant Merida has experienced no further residual symptoms that require treatment. (Gutierrez Decl., ¶4.) The Court is satisfied with this evidence that Claimant Merida is fully recovered.

No supplemental declaration from Petitioner has been filed with respect to Claimant Sahara, however. It appears that one was intended to be filed, but an Order Appointing Guardian Ad Litem was filed by mistake. Plaintiff's counsel also filed a supporting declaration in which he provides his opinion of Claimants' medical condition and asks the Court not to require unnecessary follow-up medical examinations. (Huntsman Decl., ¶¶3-8.) The Court finds it inappropriate to rely on Plaintiff's counsel's hearsay and lay opinion of Claimants' medical condition, but agrees that another medical examination may be unnecessary. The hearing will be continued again to allow filing of Petitioner's declaration with respect to Claimant Sahara.

It also remains that Petitioner's Applications for Appointment of Guardian Ad Litem filed on July 30, 2026 have not yet been granted. The continuance will provide an opportunity to address those Applications.

Conclusion

Petitioner Maria Gutierrez's Petitions to Approve Compromise of Disputed Claim on behalf of Minor Claimants Merida Bucio and Sahara Bucio are continued to 09/17/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 09/03/2026, Petitioner is to file the Declaration of Maria Gutierrez in Support of Sahara Bucios.

Moving party to give notice.